

12. *North Mills Equip. Finance LLC v. Taomore Supply Chain LTD, et al*, Case No. CIVSB2400967
Motion to be Relieved as Counsel for Cross-Defendant 1st Mars Logistics
Motion to be Relieved as Counsel for Cross-Defendant Li
7/22/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** these unopposed motion by the law firm of to be relieved as counsel for.

Here, the Bowse Davis Huffine Chung & Hull law firm seeks to be relieved as counsel for Cross-Defendants 1st Mars Logistics and Li. The motions are supported by declarations establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** these unopposed motions. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Cross-Defendants are ordered to appear at the next hearing. As a corporation, Defendant 1st Mars will be required to have representation, and the Court will inquire regarding Cross-Defendants' plans regarding representation and prosecution of this case.

9. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2317228
Petitioners' Motion for Reasonable Attorneys' Fees
7/22/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** the motion, in part, and award a reduced fee award in the amount of \$201,289.02.

Case Summary

This is California Environmental Quality Act (CEQA) litigation. At the heart of the matter was the City's approval of the Agua Mansa Logistic Center (Project), involving the construction of two warehouses. The Real Parties in Interest were those that submitted the Project applications.

In May 2023, the Planning Commission Resolutions found the CEQA Guidelines section 15183 exemption applied to the Project. It found that the Project was in conformance with the previously adopted General Plan EIR (or GPEIR). A finding was also made that all environmental impacts of the Project were either less than significant or mitigated to a level of less than significant under outlined mitigation measures. Petitioners contended that the Guidelines section 15183 exemption did not apply to the Project because of issues related to the Project's greenhouse gas emissions, air quality impacts, and historic resources not being protected.

Petitioners also asserted that the City's parking variance violated state planning and zoning laws and Colton's Municipal Code. As such, on July 21, 2023, Petitioners filed a Petition for a Writ of Mandate against the Respondent City and Real Parties in Interest, alleging (1) violation of CEQA; (2) violation of Planning and Zoning Law; and (3) violation of the City's municipal code.

Relevant here, on June 3, 2024, the Court issued its ruling and issued a peremptory writ of mandate, granting the Petition in part on November 19, 2025: The Court denied the petition as it related to the greenhouse emissions arguments and as it related to historic resources impacts. However, the Court granted the Petition as it related to operational air quality impacts finding the Guidelines section 15183 exemption was not demonstrated to apply to significant operational air quality impacts due to the City's failure to engage in mitigation analysis required under section 15183. The Court also granted the Petition as it related to the parking variance: The factors and evidence the City considered were found to be insufficient to meet the requirements for a variance under Government Code section 65906. The finding of special circumstances for purposes of Government Code section 65906 was also found not to be supported by substantial evidence.

Subsequently, the Court discharged peremptory writ of mandate. (See Order, signed May 27, 2026.) This motion followed.

Summary of the Law

Generally, attorney fees are recoverable in litigation when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5(a)(10).) Relevant here, Code of Civil Procedure section 1021.5, entitled "Attorney Fees in Cases Resulting in Public Benefit," is a codification of the "private attorney general" doctrine:

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.

(Code Civ. Proc., § 1021.5.) The trial court has broad authority to determine the amount of a reasonable fee, and its decision is reviewed for abuse of discretion. (*PLCM Group, Inc. v. Dexler* (2000) 22 Cal.4th 1084, 1095.)

Analysis

Here, Petitioners request over one million in attorneys' fees pursuant to Code of Civil Procedure section 1021.5, asserting a lodestar of approximately \$800,000 and claiming that a 1.5x

multiplier is warranted. In opposition, the Respondent and Real Party in Interest, argue that the Court should award only approximately \$50,000.

Availability of Fees Pursuant to Section 1021.5 – Generally, it appears that Petitioners are the successful party and have satisfied the elements under Section 1021.5:

Significant Public Benefit: Courts have recognized that while CEQA involves important rights affecting Californians, enforcement efforts alone do not justify an attorney fee award and the benefit gained must be significant and widespread. (*Concerned Citizens of La Habra v. City of La Habra* (2005) 131 Cal.App.4th 329, 335-336.) “Whether a successful party’s lawsuit confers a “significant benefit” on the general public or a large class of persons is a function of (1) “the significance of the benefit” and (2) “the size of the class receiving [the] benefit.” (*Woodland Hills Residents Assn., Inc. v. City Council* (1979) 23 Cal.3d 917, 939-940.) In evaluating these factors, courts are to “realistic[ally] assess[]” the lawsuit’s “gains” in light of all the pertinent circumstances. (*La Mirada Avenue Neighborhood Assn. of Hollywood v. City of Los Angeles* (2018) 22 Cal.App.5th 1149, 1158.)

In support of their argument the opposition notes the narrow result in this matter. Petitioners alleged violations of CEQA and challenged the parking variance approval. They raised issues that greenhouse gas emissions were not consistent with the General Plan, that Project increases in conventional air pollutants were not mitigated nor fully considered by the GPEIR, that the review did not account for the cumulative impacts of emissions from the Project in conjunction with other projects, that the City failed to protect historic resources, and that the City’s grant of a variance violated the City Code. (See Petitioner, Opening Brief at pp. 11-20.) Consequently, the Court issued a Writ of Mandate directing the City to vacate its decision to approve the Project and the variance. (Peremptory Writ of Mandate, p. 2, ¶¶1-2.) However, the peremptory writ was limited and focused on operational air quality impacts and the parking variance only. (*Id.*, ¶¶3-4.) The Court, for example, did not direct the City to prepare an EIR regarding the air quality impacts and only concluded the required mitigation analysis was not completed in support of the Guidelines section 15138 exemption. The Court ruled against Petitioners in all other instances. (Judgment Granting Writ of Mandate in Part and Denying Writ of Mandate in Part, p. 2, ¶1; Ruling.)

However, even if Plaintiff had some personal interest in the action, which it is clear that she did, Petitioners nevertheless enforced an important right affecting the public interest and conferred a significant benefit upon the general public. For example, their challenge was granted as it related to operational air quality impacts, finding the Guidelines section 15183 exemption was not demonstrated to apply to significant operational air quality impacts due to the City’s failure to engage in mitigation analysis required under section 15183. Although the Court did not conclude that the City was required to prepare an EIR as to air quality impacts and only concluded the required mitigation analysis was not completed in support of the Guidelines section 15183 exemption, it required the City to reevaluate the cited exemption and to conduct the proper mitigation analysis required with respect to operational air quality impacts. This would significantly affect the general public. In addition, it resulted in the deletion of the

parking variance. As noted in the Reply, Ms. Pongs spoke not just for herself but for the South Colton community. (See AR 5935.)

Necessity & Financial Burden: Petitioners argue further that the necessity and financial burden of private enforcement warrant this award because they brought this action to benefit the public. In support of this position, Petitioner Pongs also submits a declaration attesting that the action was not brought for personal benefit and she received no financial benefit. (Pongs Decl., ¶15.)

The opposition argues that facts at hand are comparable to those in *Schwartz v. City of Rosemead* (1984) 155 Cal.App.3d 547. In *Schwartz*, the Petitioner successfully obtained a writ of mandate ordering Rosemead to conduct an environmental assignment pursuant to CEQA. (*Id.* at p. 549.) The trial court found that the Appellant failed to demonstrate that the necessity and financial burden of private enforcement were present and thus did not justify an award of attorneys fees. (*Id.* at p. 550.) In reply, Petitioners argue that *Schwartz* is an outdated case and overlooks more recent case law that holds that a litigant's personal nonpecuniary motives may not be used to disqualify that litigant from obtaining fees under private attorney general fee statute. (See, e.g., *Conservatorship of Whitley* (2010) 50 Cal.4th 1206, 1217.)

Ultimately, “[w]here, as here, a lawsuit is brought against the very governmental entity and officials who refuse to comply with their admitted statutory responsibilities, the “necessity of private enforcement” portion of the test is readily met. (*Woodland Hills, supra*, 23 Cal.3d at p. 941.) Under the “necessity” prong of section 1021.5, the court looks only to the whether there is a need for a private attorney general for enforcement purposes, because no public attorney general is available.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 85.) Thus, the Court would find this element satisfied.

Reasonableness of Fees – Having established that Section 1021.5 fees are available to Petitioners, the Court must further analyze if the fee request is reasonable.

As a preliminary matter, the Court does *not* accept that the geographic region reasonably supports the indicated rates approaching \$1,000 per hour. Nevertheless, the Court notes the lodestar analysis reduced rates by 10% across-the-board and will, therefore, accept the general adjusted figures and focus instead on hours and entries.

As a further preliminary matter, the Court will decline the requested multiplier, as nothing in the facts appear to support the exceptional circumstances that would warrant it. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 40 [discussing factors for such adjustments including novelty; skill; the extent to which other work was precluded; and contingency].)

Colton III: Respondents argue that fees incurred as a result of Colton III, a completely separate and purely private breach of contract action that does not implicate section 1021.5, are *not* recoverable. They note that although Colton III arose out of this action, it concerned whether there was a private breach of a settlement and concerned whether a private agreement was formed.

As it did not vindicate a public right, they argue it is not covered by Section 1021.5. Moreover, the resolution of Colton III would either bind or not bind Petitioners to the agreement and would not have bound the public or had an effect on the public. At the same time, the opposition acknowledges that work performed on non-compensable claims may sometimes be recoverable. “Apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.” (*Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 687.) At the same time, however, Respondent and Real Party correctly note that where claims can be segregated and involve distinct legal theories, courts can require that the fee request be limited to the work attributable to the compensable claim. (See *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 159.)

Here, the Colton III claims are easily segregated from those in the instant action, they are distinct claims based on distinct legal theories, and though one action arose out of the other, they are not inextricably intertwined. Respondent and Real Party’s characterization of the Colton III action as a breach of a private agreement is well reasoned. Thus, the Court disallow, or deduct, the fees requested that arose out of Colton III.

Table 1 includes those entries that include time spent on Colton III. (¶¶ 9-10(a).) Table 2 includes those entries that Venskus & Associates, A.P.C., billed for its time spent working on Colton III. (¶ 10(b).) The total fees requested for work on Colton III total \$259,906.00 plus \$32,575.47 (Venskus fees). This results in a total deduction of \$292,481.47.

Colton II: Respondent and Real Party also take issue with the fees sought in connection with Colton II. As noted in the opposition, Petitioners have not yet been successful in Colton II. Colton II corresponds to San Bernardino Superior Court Case CIVSB2417236, *South Colton Families First v. City of Colton*. As noted by Petitioners, this action concerned Project modifications made in April 2024. (See Carstens Decl., ¶27.) Here, Respondent and Real Party are correct that fees sought for this action are premature. Table 3 shows that this includes \$5,940.00 in fees and Table 4 shows that it also includes \$12,929.00 in fees. (Gosney Decl. ¶ 10(c).) Therefore, the Court would deduct additional fees in the amount of \$18,869.00.

Excessive Billing: As to the preliminary injunction, it was never filed, and there is no evidence it had any impact on this matter. Therefore, the Court would deduct \$17,876. (See Gosney Decl., ¶10(e); Exh. A, Table 10.) The hours billed for the reply brief are also excessive as well, and the Court would reduce the amount by half, or deduct \$37,737.50. (See Gosney Decl., ¶10(e); Exh. A, Table 9.)

The Court would deny the other arguments, such as that related to unsuccessful settlement discussions, raised in the opposition as to excessive billing.

Limited Success: “California courts applying section 1021.5 in cases of limited success have adopted the approach set forth in *Hensley v. Eckerhart* (1983) 461 U.S. 424, 434. *Hensley* recognized that a plaintiff might join in one action “distinctly different claims for relief that are based on different facts and legal theories.” As a consequence, an attorney’s work on one claim

may be unrelated to work on another claim. Work on an unsuccessful and unrelated claim generally will not be compensable, as it “cannot be deemed to have been ‘expended in pursuit of the ultimate result achieved.’ [Citation.]” (*Hensley, supra*, 461 U.S. at p. 435 [citation omitted].)

The *Hensley* case establishes a two-part inquiry: (1) whether the plaintiff failed to prevail on claims that were unrelated to the claims on which he succeeded and (2) whether the plaintiff achieved a level of success that makes the hours reasonably expended a satisfactory basis for making a fee award.

Related and Unrelated Claims: Here, the successful claims and unsuccessful claims are based on different facts and legal theories. Moreover, the holding as to the successful claims was very limited. On the other hand, while Petitioners were successful only to the extent the Respondent did not sufficiently engage in mitigation analysis required under section 15138 and as to the parking variance, the ruling resulted in vacating the approvals set forth in Resolution Nos. R-60-23 and R-72-23, which was the ultimate goal of the Petition. In this respect, the claims are related because their purpose was to remedy a course of conduct not entirely distinct and separate from the course of conduct that gave rise to the injury on which the relief granted.

In this instance, Petitioners’ unsuccessful issues are not unsuccessful claims that were ultimately necessary for the success of the litigation, and thus unrelated to their successful issues.

Significance of the Overall Relief: Here, although the overall relief Petitioners obtained was significant, they were ultimately successful on only two of their four legal theories. Moreover, Respondent was only ordered to engage in the mitigation analysis in order to support the exemption rather than produce an EIR and support the parking variance. Therefore, the level of success achieved, being very limited, does not support recovery for all of the attorneys’ fees. The significance of the overall relief compared to the hours spent is, therefore, unreasonable.

As there was only limited success in this litigation, the Court would further reduce fees. However, whereas the opposition identifies five issues having been raised, the Opening Brief contested the application of the Guidelines 15138 exemption with respect to the Project’s greenhouse gas emissions, air quality impacts, and historic resources not being protected. The parking variance was also challenged successfully. Therefore, there were two out of four issues for which there was success in this litigation. In addition, although the Carstens Declaration is detailed, as are the billing records attached to as Exhibit A, it is not possible for the Court to parse out those billing entries directly related to only these two issues. For example, on November 16, 2023, there is an entry for revising the draft argument regarding VMT and GHG emissions from the Project and to revise air quality argument. There is another entry on December 19, 2023, for research on the opening brief. There are numerous entries where the issues overlap or not specifically identified. (See Carstens Decl.; Exh. A.)

Thus, rather than a three-fifths reduction, the Court would impose a one-half reduction for the limited success based on the Petitioners' success with respect to two out of their four claims.

In sum, Petitioners seek an adjusted lodestar of \$769,342. The Court would deduct as follows: Colton III (\$292,481.47), Colton II (\$18,869.00), Preliminary Injunction fees (\$17,876.00), Reply Brief (\$37,737.50), for a total of a reduced fee award of \$402,378.03. Further, this award is reduced by half for the limited success in this litigation; thus, the Court award a reduced fee in the amount of \$201,289.02.
